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Envision WC MB

Auto, LLC, et al. v. Rivera, et al., Case No. 24PSCV04174

ORDER ON

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT

Plaintiff

Envision WC MB Auto, LLC dba Mercedes-Benz of West Covina's Motion for Summary Judgment is DENIED.

Background

Plaintiff Envision WC MB Auto, LLC dba Mercedes-Benz of West Covina ("Plaintiff") alleges as follows:

Plaintiff

entered into a written Retail Installment Sale Contract (the "Contract") to finance and sell a 2022 Mercedes-Benz Model GLC 300 to Defendants Galia Rivera and Jorge Rivera ("Defendants") at the financed price of \$43,575.35 with installments being paid over a 72-month term. Defendants paid a \$3,000 down payment and took possession of the vehicle on the same date.

Thereafter,

Defendants were involved in a car accident that resulted in a total loss of the vehicle. Defendants refused to make any further payments under the Contract, despite being obligated to do so. On August 5, 2024, Plaintiff demanded all amounts due under the Contract but Defendants refused.

On December 6, 2024, Plaintiff filed a complaint against Defendants alleging: (1) Breach of Contract and (2) Common Counts.

The Final Status Conference is set for September 24, 2026. Trial is set for October 9, 2026.

Legal Standard

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and all inferences reasonably deducible from the evidence and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119 [quotations omitted; emphasis in original].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

A plaintiff moving for summary judgment meets its burden by proving each element of its cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once that burden has been met, “the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Id.)

Discussion

The elements of breach of contract are: (1) the existence of a contract, (2) the plaintiff’s performance

or excuse for nonperformance, (3) the defendant's breach, and (4) resulting damages. (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1173.)

A common count may be pled whenever the plaintiff seeks recovery of a sum certain or the reasonable value of goods or services, even if the underlying transaction was governed by an express contract. (Farmers Ins. Exchange v. Zerín (1997) 53 Cal.App.4th 445, 460.)

Plaintiff has made a prima facie showing as to each element of its breach of contract and common count causes of action. Specifically, Plaintiff shows that the parties entered into the Contract on March 24, 2024; that pursuant to the Contract, Defendants agreed to pay \$43,575.35 over 72 monthly payments; and that on March 25, 2024, Defendants reported they were involved in a car accident that resulted in the car being a total loss. (Plaintiff's SSUMF Nos. 1, 2, 3, 4; Baeza Dec., ¶¶ 4-6, Ex. 2.) Under Paragraph 2, subsection (a) of the Contract, accident and total loss of the vehicle do not relieve Defendants of their obligation to pay the vehicle loan. (Plaintiff's SSUMF No. 7; Baeza Dec., ¶¶ 4, 8-9, Ex. 2, p. 3.) Under Paragraph 3, subsection (b) of the Contract, in the event of Defendants' default on their payment obligation, Plaintiff is entitled to demand Defendants to pay all they owe under the Contract at once. (Plaintiff's SSUMF No. 8; Baeza Dec., ¶¶ 3, 10, Ex. 2, p. 3.) Plaintiff establishes damages in the amount of \$43,575.35 plus interest. (Plaintiff's SSUMF No. 9; Baeza Dec., Ex. 2, ¶¶ 7-11.)

Because Plaintiff has made a prima facie showing as to each element of the breach of contract and common count causes of action, the burden shifts to the Defendants to raise a triable issue of material fact.

Defendants first argue that their non-performance is excused under Civil Code Section 1511 because Plaintiff failed to send billing statements and hid account statements from Defendants. (Def. Opp. at p. 4) The Court disagrees. The Contract specifies all terms necessary for Defendants to perform. The lack of billing statements does not make performance impossible or otherwise prevent Defendants from performing under the Contract.

Defendants next contend that

Plaintiff breached the implied covenant of good faith and fair dealing. As Plaintiff correctly notes, that covenant "cannot impose obligations beyond those to which the contracting parties actually agreed." (Pl. Reply at p. 4 [citing *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 349-350].) Defendants identify no contractual term that Plaintiff interfered with.

Finally, Defendants argue that there is a triable issue of fact regarding damages because Plaintiff received a check in the amount of \$10,662.93 from Mercury Insurance Company in relation to the subject vehicle, such that Plaintiff's damages are less than the contract amount. (Declaration of Galia Rivera, Exhibit A.) The Court determines that Defendants have raised a triable issue of material fact as to damages. In reaching this conclusion, the Court rejects Plaintiff's argument that the collateral source rule bars consideration of the insurance payment as the collateral source rule does not apply to breach of contract claims. (*Plut v. Fireman's Fund Ins. Co.* (2000) 85 Cal.App.4th 98, 107.)

Because damages are an essential element of both causes of action, and Defendants have presented evidence creating a triable issue, Plaintiff's motion for summary judgment is denied.

Conclusion

For the reasons set forth herein, Plaintiff's motion for summary judgment is DENIED.